

COOPERATIVE AGREEMENT P12AC31078

Between

The Department of the Interior

National Park Service

and

The Ohio River Trail Council

PROJECT TITLE: Upper Ohio River Water Trail, Pennsylvania Section

CFDA NUMBER: 15.943 Challenge Cost Share Program

This Agreement is made and entered into between the **Ohio River Trail Council**, a non-profit corporation and the United States Department of the Interior, National Park Service (NPS), also referred to as Cooperator.

ARTICLE I – BACKGROUND AND OBJECTIVES

The Ohio River has resources of national significance as evidenced by recent federal initiatives. The Upper Ohio River, from the river's origin in Pittsburgh, downstream to the OH/WV/PA line, is included in the Lewis & Clark National Historic Trail's "Eastern Legacy Special Resource Study" currently underway. In addition, the Ohio River Islands National Wildlife Refuge was created in 1990, to protect wildlife and native habitats, and public use and environmental education are critical to the mission, and two of the islands, Phillis and Georgetown Islands, are within Pennsylvania. The segment of the Ohio River in Pennsylvania is also within the boundary of the Rivers of Steel National Heritage Area.

Much of the Ohio River region directly downstream of Pittsburgh is a blighted post-industrial urban area, struggling to redefine themselves as river towns. There are many derelict, unused industrial sites along the river (and US EPA brownfields assessment funds are studying reclamation/reuse options). The view of the communities from the river is much different, offering green banks and broad waters.

The southwestern Pennsylvania region is experiencing a rapid growth in interest and use of our rivers, as exemplified by the adjacent Three Rivers Water Trail in the Pittsburgh area and Allegheny County. This is emblematic of a national upward trend in the popularity of human-powered recreation. To address this growing appeal and to introduce more people to the recreational and environmental renewal of the Ohio River, the ORTC is creating the Ohio River Water Trail System.

The entire Ohio River is a lock & dam river, managed by the US Army Corps of Engineers, Pittsburgh District. There are barges and recreational motor boats that ply the waters, but a canoe/kayaker staying close to the shoreline would be kept out of their way.

Since 2009, the Ohio River Trail Council (ORTC) has been working on developing the vision for a land and water trail along the Ohio River in PA. The ORTC formed to

improve the quality of life in the Ohio River towns in PA, works closely with the 29 municipalities, and all have passed Resolutions supporting this partnership. The Port of Pittsburgh has been supportive in their grant-giving to improve access sites. The Pennsylvania Environmental Council is helping with community-based planning to acquire state designation for the Upper Ohio River Water Trail. NPS-RTCA, through the WV Field Office, is assisting the ORTC in 2011 and 2012 with land and water trail development.

Objectives

The first objective is to establish a safe and marketable water trail along the Ohio River in Beaver County PA. The second objective is to designate the Upper Ohio River Water Trail as part of the Pennsylvania Water Trail Program, and also as part of the National Water Trail System. Because there are no organized paddling groups, nor youth programs, the third objective is to train up the next generation of conservation-oriented river users.

The Upper Ohio River corridor currently lacks maps and guides for boaters, directional and informational signage and kiosks, and canoeing and kayaking programs.

Efforts are underway by the Ohio River Trail Council to create a 40-mile land and water trail along the Upper Ohio River. The creation of the Upper Ohio River Water Trail will jump-start local efforts downstream to promote and protect the Ohio River, and share the history and beauty of what was historically known as “Ohio - great river”.

Improving access sites for paddlers and establishing a Youth Paddling Program will attract caring attention to the river, and those who love the river will work to protect it. The Ohio River Water Trail will be designed to provide safe non-motorized boat launches and easy shore access, maintain and respect the environment’s natural character, and promote responsible use of our rivers.

ARTICLE II – AUTHORITY

16 U.S.C. Section §1g provides that the National Park Service may, in fiscal year 1997 and thereafter, enter into cooperative agreements that involve the transfer of National Park Service appropriated funds to State, local and tribal governments, other public entities, educational institutions, and private nonprofit organizations for the public purpose of carrying out National Park Service programs pursuant to *31 U.S.C. 6305* to carry out public purposes of National Park Service programs.

Public Law 104-333 (*16 USC § 1f*) Authorizes the NPS to enter into agreements with cooperators for the purpose of sharing costs or services in carrying out authorized functions and responsibilities of the Secretary with respect to any unit or program of the national park system, any affiliated area, or any designated national scenic or historic trail.

ARTICLE III - STATEMENT OF WORK

A. The NPS Agrees To:

1. Provide funding in the amount of \$9,900.00 in accordance with the provisions of the Challenge Cost Share Program, representing ONE (1) RTC-CCSP approved application: **Attachment 1 FY 2012 Challenge Cost Share Application.**
2. Assist in facilitating meetings of the Ohio River Water Trail Steering Committee.
3. Review the selection and contracting process for the Consultant.
4. Assist in field work and data collection for the Map and Brochure.
5. Assist with selection of materials and supplies.
6. Assist with planning and development of the Map and Brochure.
7. Assist with partnership development for and implementation of a Youth Paddling Program.
8. Assist with development of stakeholder contacts database.
9. Assist with photo documentation of the project process and deliverables.

B. The Ohio River Trail Council Agrees To:

1. Expend at least \$28,484 in match funds or in-kind contributions on the project to satisfy the matching requirement proposed in the application (See Attachment 1).
2. Create and manage the Ohio River Water Trail Steering Committee.
3. Host the Steering Committee meetings.
4. Assist in field work and data collection for the Map and Brochure.
5. Compile all needed data for Consultant.
6. Create and manage the Contract with consultants.
7. Purchase the materials and supplies.
8. Install and maintain the kiosks at 4 river access sites.
9. Assist with partnership development for and implementation of a Youth Paddling Program.

10. Lead a minimum of one paddling trip.
11. Promote the Upper Ohio River Water Trail project, to ensure public awareness and involvement.
12. Photo documentation of the project process and deliverables.
13. Provide the following deliverables:
 - a. Upper Ohio River Water Trail Map/Brochure, 5000 copies distributed to the public, 20 copies to NPS-RTCA.
 - b. 4 Kiosks installed on 4 river access sites, photo documentation to RTCA.
 - c. 4 Kayaks and gear bought, and at least one youth paddle trip, photo documentation to RTCA.
14. Provide NPS with a completion report and full accounting for funding and the required 50% match contribution of cash, goods, or in-kind services from non-federal sources.

B. Both parties agree to:

1. Communicate regularly to review the progress of the Upper Ohio River Water Trail project and address issues of mutual concern.
2. Jointly develop and implement strategies and work plans for achieving the purposes of this Agreement.
3. Coordinate all Upper Ohio River Water Trail activities throughout the term of this Agreement.

ARTICLE IV - TERM OF AGREEMENT – PROJECT PERIOD

This Agreement will become effective upon the signature of the National Park Service Contracting Officer and extend until September 30, 2013, unless terminated earlier in accordance with Article XII.

ARTICLE V - KEY OFFICIALS

The personnel specified below are considered to be essential to ensure maximum coordination and communication between the parties and the work being performed hereunder. Either party, on notice to the other party, may designate another person or persons to act in his/her place for point of contact positions that do not require specific designation.

The NPS Agreements Technical Representative (ATR) will be designated in writing by the Contracting Officer. Authorities and limitations of authority will be explained in the designation letter.

The Recipient may change its Key Officials by notifying the NPS Contracting Officer in writing. The Recipient will address any communication regarding this Agreement to the NPS ATR.

**1. For the National Park Service:
Signatory Contracting Officer**

NER Agreements/Contracting Officer
National Park Service
US Custom House
200 Chestnut Street-3rd Floor
Philadelphia, PA 19106
Telephone: 215-597-6476

Project Manager

Peggy Pings
Outdoor Recreation Planner
National Park Service, RTCA, WV Field Office
WVU Division of Forestry
PO Box 6125
Morgantown, WV 26506-6125
Telephone: 304.293.7528
Fax: 304.293.2441
Email: mpings@wvu.edu

Agreements Technical Representative

David A. Lange, Division Chief
Conservation and Recreation Assistance Division
Rivers, Trails & Conservation Assistance Program
200 Chestnut Street 3rd Floor
Philadelphia, PA 19106
Office: 215.597.6477
Cell: 267.767.3255
Fax: 215.597.0932 / 5747
Email: david_a_lange@nps.gov

2. For the Cooperator:

Dr. Vincent Troia,
Chief Executive Chairman & CEO
Ohio River Trail Council
1100 Pennsylvania Ave.
Monaca, PA 15061

Email: drvtroia@troiaeye.net

Telephone: 724.728.2625

Facsimile: 724-775-9876

ARTICLE VI – AWARD, PAYMENT AND REIMBURSEMENT

- A. The NPS has approved this project and the following documents have been submitted by the Cooperator prior to award:
1. SF-424, Request for Federal Financial Assistance
 2. SF-424A, Budget Information, Non-construction Programs
 3. SF-424B, Assurances, Non-construction Programs
- Budget Information from the SF-424A is summarized later in this Article.
- B. The following funds are obligated against this Agreement:
- Amount: \$9,900.00 Account Number: 4531-1203-SCF**
- C. The cooperator is required to register with the Central Contractor Registration (CCR), accessed at <http://www.ccr.gov>. Failure to register can impact assistance or procurements documents issued in connection with this Agreement.
- D. Payment under will be made no more frequently than monthly and will be paid by electronic funds transfer directly into the recipient's account located at the financial institution as designated in the Central Contractor Register. The preferred payment frequency is quarterly. The submission of quarterly requests should be timed to coincide with quarterly submission of SF-425 Federal Financial Reports (FFR).
- E. The recipient must submit Standard Form 270 (SF-270), "Request for Advance or Reimbursement," for payment, in signed original to the Contracting Officer with a copy to the ATR for ATR review and approval.

Each SF-270 furnished will be addressed to:

Contracting Officer/Invoice Coordinator

National Park Service

Northeast Region

200 Chestnut Street, 3rd floor

Philadelphia, PA 19106

Inquiries concerning status of payment requests can be made via e-mail to

ner_agree_pay@nps.gov

- F. Unless arranged prior to the award of the Agreement, requests for advance payment will not be considered.

G. The Ohio River Trail Council will submit a breakdown sheet showing expended costs in each budgetary item, include the expenditure of the Cooperator's "match" to the CCSP funds. This documentation will assist the NPS Contracting Officer and NPS ATR in evaluating future requests. All contributions identified as part of the Cooperator's match must meet all of the following criteria:

1. Must be verifiable from the Cooperator's records.
2. Must not be included as contributions for any other federally-assisted project or program.
3. Are necessary and reasonable for proper and efficient accomplishment of project or program objectives.
4. Are allowable under OMB cost principals.
5. Are not paid by the Federal Government under another award, except where authorized by federal statute to be used for cost sharing or matching.
6. Are provided for in the approved budget.

BUDGET SUMMARY			
Category	NPS CCSP Funds	Match/Cost Share	Total
1. Personnel	\$0	\$12,800	\$12,800
2. Fringe Benefits	\$0	\$ 0	\$0
3. Travel and Per Diem	\$0	\$3,424	\$3,424
4. Equipment	\$0	\$0	\$0
5. Supplies and Materials	\$3,160	\$200	\$ 3,360
6. Contractual(incl. Printing Water Trail Map/Brochure Guide)	\$6,740	\$2,060	\$8,800
7. Construction	\$0	\$ 0	\$ 0
8. Other	\$0	\$ 0	\$ 0
TOTAL PROJECT COSTS	\$9,900	\$28,484	\$38,384

Note: This is a revised Budget Summary that accurately reflects the actual Federal funding and the Non-Federal Match.

H. Nothing contained in this Agreement will be construed as binding the NPS to expend in any one fiscal year any sum in excess of the appropriation made by Congress or administratively allocated for purposes of this Agreement in that fiscal year.

ARTICLE VII - PRIOR APPROVAL

The Cooperator shall obtain prior approval for budget and program revisions, in accordance with OMB circular A-110 as codified by 43 CFR Subpart F, §12.925.

ARTICLE VIII – LIABILITY

The Cooperator agrees to:

- A. To indemnify, save and hold harmless, and defend the United States against all fines, claims, damages, losses, judgments, and expenses from any act of omission of the recipient, its officers, employees, or (members, participants, agents, representatives, agents as appropriate) arising out of or in any way connected to activities authorized pursuant to this Agreement.
- B. To purchase public and employee's liability insurance at its own expense from a responsible company or companies with a minimum limitation of One Million Dollars (\$1,000,000) per person for any one claim, and an aggregate limitation of Three Million Dollars (\$3,000,000) for any number of claims arising from any one incident. The policies shall name the United States as an additional insured, shall specify that the insurer shall have no recourse against the Government for payment of any premium or assessment, and shall specify that the insurance shall be assumed by, be for the account of, and be at the insured's sole risk. Prior to beginning the work authorized herein, the contractor shall provide the NPS with confirmation of such insurance coverage.
- C. To pay the United States the full value for all damages to the lands or other property of the United States caused by the recipient, its officers, employees, or representatives.
- D. To provide worker's compensation protection to recipient's officers, employees, and representatives.
- E. To cooperate with the NPS in investigation and defense of any claims that may be filed with the NPS arising out of the activities of the cooperator, its agents, and employees.

ARTICLE IX - REPORTS AND/OR DELIVERABLES

- A. **Where to Submit** – In accordance with 43 CFR Part 12, the recipient will submit reports to the NPS Contracting Officer at the address specified in Article V. The recipient will also submit a copy of each report to the ATR at the address specified in Article V.
- B. **What and When to Submit** – The recipient will submit to the NPS the following reports at the specified times:
1. Federal Financial Report (FFR), SF425, submitted quarterly, no more than 30 days after the end of the reporting period. The following reporting period end dates will be used for quarterly reports: 3/31, 6/30, 9/30 or 12/31. Upon completion of the project a final FFR will be submitted no more than 90 days after the final project end date.
 2. FFR reports will be submitted for this agreement for any period of time within the quarterly report period.
 3. In accordance with 43 CFR Part 12.951 in any fiscal year in which Federal funds are received under this Agreement, the Recipient shall submit to the NPS an annual report describing the accomplishments of the Cooperator, the expenses and income of the Cooperator, and each entity to which the Cooperator made any grant during the fiscal year.

Annual Report	Period Ending	Report Due Date
1	September 30, 2013	December 30, 2013

- C. **Recordkeeping** – The recipient will keep records concerning this Agreement in accordance with the requirements of the General Provisions, CFR and applicable Office of Management and Budget Circulars.

D. Specific Deliverables

1. A list of project deliverables for this agreement is:
 - a. Upper Ohio River Water Trail Map/Brochure.
 - b. Four kiosks installed on four river access sites.
 - c. Four kayaks and gear bought, and
 - d. One organized paddle trip focusing on engaging youth from the community.

ARTICLE X - PROPERTY UTILIZATION AND DISPOSITION

Property utilization and disposition shall be in accordance with the OMB Circulars listed in Article XIII and 43 CFR 12 Subpart F. If the project described in Article III includes the acquisition of property (i.e. equipment, supplies) see www.whitehouse.gov/omb/grants to access the applicable OMB Circulars.

ARTICLE XI - PROGRAM INCOME

Program income earned during the project period shall be retained by the Cooperator and added to funds committed to the project by the NPS and the Cooperator and used to further eligible projects or program objectives. Additionally, revenues derived from the sale of deliverables and earned after the end of the project period must be used to fund projects or programs consistent with the Park goals. However, program income does not include interest earned on funds received from the NPS which interest shall be remitted promptly but at least quarterly to the NPS. The Cooperator may keep interest amounts up to \$100 per year for administrative expenses.

ARTICLE XII – MODIFICATION AND TERMINATION

- A. This Agreement may be modified only by a written instrument executed by the parties. Modifications will be in writing and approved by the NPS Contracting Officer and the authorized representative of Cooperator.
- B. This agreement may be terminated consistent with applicable termination provisions for Cooperative Agreements found in 2 CFR 215.61.

ARTICLE XIII - GENERAL AND SPECIAL PROVISIONS

A. General Provisions

- 1. OMB Circulars and other Regulations - The following OMB Circulars and other regulations are incorporated by reference into this Cooperative Agreement:
 - a) 2 CFR Part 230 (OMB Circular A-122), *Cost Principles for Private Non-Profit Organizations*.
 - b) 2 CFR Part 215 (OMB Circular A-110), as codified by 43CFR Part 12, Subpart F, *Uniform Administrative Requirements for Grants and Agreements with Institutions of Higher Education, Hospitals, and Other Non-Profit Organizations*.
 - c) OMB Circular A-133, *Audits of States, Local Governments, and Non-Profit Organizations*.
 - d) FAR Clause 52.203-12, Paragraphs (a) and (b), *Limitation on Payments to Influence Certain Federal Transactions*.
- 2. **Trafficking in Persons**

- a) Provisions applicable to a Cooperator that is a private entity.
 - (1) You as the Cooperator, your employees, subrecipients under this award, and subrecipients' employees may not--
 - (i) engage in severe forms of trafficking in persons during the period of time that the award is in effect;
 - (ii) procure a commercial sex act during the period of time that the award is in effect; or
 - (iii) use forced labor in the performance of the award or subawards under the award.
 - (2) We as the Federal awarding agency may unilaterally terminate this award, without penalty, if you or a subrecipient that is a private entity –
 - (i) is determined to have violated a prohibition in paragraph a.1 of this award term; or
 - (ii) has an employee who is determined by the agency official authorized to terminate the award to have violated a prohibition in paragraph a.1 of this award term through conduct that is either
 - (A) associated with performance under this award; or
 - (B) imputed to you or the subrecipient using the standards and due process for imputing the conduct of an individual to an organization that are provided in 2 CFR part 180, “OMB Guidelines to Agencies on Governmentwide Debarment and Suspension (Nonprocurement),” as implemented by our agency at 43 CFR Part 12.
- b) Provision applicable to a Recipient other than a private entity.
 - (1) We as the Federal awarding agency may unilaterally terminate this award, without penalty, if a subrecipient that is a private entity--
 - (i) is determined to have violated an applicable prohibition in paragraph a.1 of this award term; or
 - (ii) has an employee who is determined by the agency official authorized to terminate the award to have violated an applicable prohibition in paragraph a.1 of this award term through conduct that is either-
 - (A) associated with performance under this award; or
 - (B) imputed to the subrecipient using the standards and due process for imputing the conduct of an individual to an organization that are provided in 2 CFR Part 180, “OMB Guidelines to Agencies on Governmentwide Debarment and Suspension (Nonprocurement),” as implemented by our agency at 43 CFR Part 12.
- c) Provisions applicable to any Recipient.
 - (1) You must inform us immediately of any information you receive from any source alleging a violation of a prohibition in paragraph a(1) of this award term.

- (2) Our right to terminate unilaterally that is described in paragraph a(2) or b of this section:
 - (i) implements section 106(g) of the Trafficking Victims Protection Act of 2000 (TVPA), as amended (22 U.S.C. 7104(g)), and
 - (ii) is in addition to all other remedies for noncompliance that are available to us under this award.
- (3) You must include the requirements of paragraph a.1 of this award term in any subaward you make to a private entity.
- d) Definitions. For purposes of this award term:
 - (1) “Employee” means either:
 - (i) an individual employed by you or a subrecipient who is engaged in the performance of the project or program under this award; or
 - (ii) another person engaged in the performance of the project or program under this award and not compensated by you including, but not limited to, a volunteer or individual whose services are contributed by a third party as an in-kind contribution toward cost sharing or matching requirements.
 - (2) “Forced labor” means labor obtained by any of the following methods: the recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subsection to involuntary servitude, peonage, debt bondage, or slavery.
 - (3) “Private entity”:
 - (i) means any entity other than a State, local government, Indian tribe, or foreign public entity, as those terms are defined in 2 CFR 175.25.
 - (ii) includes:
 - (A) a nonprofit organization, including any nonprofit institution of higher education, hospital, or tribal organization other than one included in the definition of Indian tribe at 2 CFR 175.25(b).
 - (B) a for-profit organization.
 - (4) “Severe forms of trafficking in persons,” “commercial sex act,” and “coercion” have the meanings given at section 103 of the TVPA, as amended (22 U.S.C. 7102).

3. Non-Discrimination - All activities pursuant to this Agreement shall be in compliance with the requirements of Executive Order 11246; Title VI of the *Civil Rights Act of 1964*, as amended, (78 Stat. 252; 42 U.S.C. §§ 2000d et seq.); Title V, Section 504 of the *Rehabilitation Act of 1973*, as amended, (87 Stat. 394; 29 U.S.C. §794); the *Age Discrimination Act of 1975* (89 Stat. 728; 42 U.S.C. §§ 6101 et seq.); and with all other federal laws and regulations prohibiting discrimination on grounds of race, color, sexual orientation, national origin, disabilities, religion, age, or sex.

- 4. Lobbying Prohibition** - 18 U.S.C. §1913, Lobbying with Appropriated Moneys, as amended by Public Law 107-273, Nov. 2, 2002 - No part of the money appropriated by any enactment of Congress shall, in the absence of express authorization by Congress, be used directly or indirectly to pay for any personal service, advertisement, telegram, telephone, letter, printed or written matter, or other device, intended or designed to influence in any manner a Member of Congress, a jurisdiction, or an official of any government, to favor, adopt, or oppose, by vote or otherwise, any legislation, law, ratification, policy, or appropriation, whether before or after the introduction of any bill, measure, or resolution proposing such legislation, law, ratification, policy, or appropriation; but this shall not prevent officers or employees of the United States or of its departments or agencies from communicating to any such Members or official, at his request, or to Congress or such official, through the proper official channels, requests for legislation, law, ratification, policy, or appropriations which they deem necessary for the efficient conduct of the public business, or from making any communication whose prohibition by this section might, in the opinion of the Attorney General, violate the Constitution or interfere with the conduct of foreign policy, counter-intelligence, intelligence, or national security activities. Violations of this section shall constitute violations of section 1352(a) of title 31. In addition to the above, the related restrictions on the use of appropriated funds found in Div. F, § 402 of the Omnibus Appropriations Act of 2008 (P.L. 110-161) also apply.
- 5. Anti-Deficiency Act - 31 U.S.C. § 1341** - Nothing contained in this Agreement shall be construed as binding the Service to expend in any one fiscal year any sum in excess of appropriations made by Congress or administratively allocated for the purposes of this Agreement for that fiscal year, or to involve any Federal agency in any contract or other obligation for the further expenditure of money in excess of such appropriations or allocations.
- 6. Minority Business Enterprise Development** - Executive Order 12432 - It is national policy to award a fair share of contracts to small and minority firms. The Service is strongly committed to the objectives of this policy and encourages all Cooperators of its Cooperative Agreements to take affirmative steps to ensure such fairness by ensuring procurement procedures are carried out in accordance with 43 CFR § 12.944 for Institutions of Higher Education, Hospitals and Other Non-Profit Organizations, and 43 CFR § 12.76 for State and Local Governments.
- 7. New Restrictions on Lobbying-** In accordance with 43 CFR Part 18.100, no appropriated funds may be expended by the recipient of a Federal cooperative agreement to pay any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of congress, or an employee of a Member of Congress in connection with any of the covered Federal actions.

Each person who requests or receives from an agency, a Federal cooperative agreement, shall file the certification set forth in Appendix A of this part. The

Certification can be found in grants.gov as the Grants.gov Lobbying Form, but as of yet has no Form Number.

Recipients of a Federal cooperative agreement shall file the disclosure form, set forth in Appendix B of the part, if such person has made or has agreed to make any payment using non-appropriated funds, which would be prohibited by this part, if paid for using appropriated funds.

- 8. Prohibition on Text Messaging and Using Electronic Equipment Supplied By the Government While Driving** - Prohibition on Text Messaging and Using Electronic Equipment Supplied By the Government While Driving - Executive Order 13513,(October 1, 2009 - Federal Leadership on Reducing Text Messaging While Driving) Recipients/cooperators and subrecipients are encouraged to adopt and enforce policies that ban text messaging while driving company-owned or – rented vehicles or GOV, or while driving POV when on official Government business or when performing any work for or on behalf of the Government.

9. Central Contractor Registration and Universal Identifier Requirements

A. Requirement for Central Contractor Registration (CCR)

Unless you are exempted from this requirement under 2 CFR 25.110, you as the recipient must maintain the currency of your information in the CCR until you submit the final financial report required under this award or receive the final payment, whichever is later. This requires that you review and update the information at least annually after the initial registration, and more frequently if required by changes in your information or another award term.

B. Requirement for Data Universal Numbering System (DUNS) Numbers

If you are authorized to make subawards under this award, you:

1. Must notify potential subrecipients that no entity (*see* definition in paragraph C of this award term) may receive a subaward from you unless the entity has provided its DUNS number to you.
2. May not make a subaward to an entity unless the entity has provided its DUNS number to you.

C. Definitions

For purposes of this award term:

1. *Central Contractor Registration (CCR)* means the Federal repository into which an entity must provide information required for the conduct of business as a recipient. Additional information about registration procedures may be found at the CCR Internet site (currently at <http://www.ccr.gov>).

2. *Data Universal Numbering System (DUNS) number* means the nine-digit number established and assigned by Dun and Bradstreet, Inc. (D&B) to uniquely identify business entities. A DUNS number may be obtained from D&B by telephone (currently 866–705–5711) or the Internet (currently at <http://fedgov.dnb.com/webform>).
3. *Entity*, as it is used in this award term, means all of the following, as defined at 2 CFR part 25, subpart C:
 - a) A Governmental organization, which is a State, local government, or Indian Tribe;
 - b) A foreign public entity;
 - c) A domestic or foreign nonprofit organization;
 - d) A domestic or foreign for-profit organization; and
 - e) A Federal agency, but only as a subrecipient under an award or subaward to a non-Federal entity.
4. *Subaward*:
 - a) This term means a legal instrument to provide support for the performance of any portion of the substantive project or program for which you received this award and that you as the recipient award to an eligible subrecipient.
 - b) The term does not include your procurement of property and services needed to carry out the project or program (for further explanation, see Sec. 11.210 of the attachment to OMB Circular A–133, “Audits of States, Local Governments, and Non-Profit Organizations”).
 - c) A subaward may be provided through any legal agreement, including an agreement that you consider a contract.
5. *Subrecipient* means an entity that:
 - a) Receives a subaward from you under this award; and
 - b) Is accountable to you for the use of the Federal funds provided by the subaward.

10. Assignment: No part of this Agreement shall be assigned to any other party without prior written approval of the NPS and the Assignee.

- 11. Agency:** The Partner is not an agent or representative of the United States, the Department of the Interior, NPS, or the Park, nor will the Partner represent its self as such to third parties. NPS employees are not agents of the Partner and will not act on behalf of the Partner.
- 12. Non-Exclusive Agreement:** This Agreement in no way restricts the Partner or NPS from entering into similar agreements, or participating in similar activities or arrangements, with other public or private agencies, organizations, or individuals.
- 13. Survival:** Any and all provisions which, by themselves or their nature, are reasonably expected to be performed after the expiration or termination of this Agreement shall survive and be enforceable after the expiration or termination of this Agreement. Any and all liabilities, actual or contingent, which have arisen during the term of and in connection with this Agreement shall survive expiration or termination of this Agreement.
- 14. Partial Invalidity:** If any provision of this Agreement or the applications thereof to any party or circumstance shall, to any extent, be held invalid or unenforceable, the remainder of the Agreement of the application of such provision to the parties or circumstances other than those to which it is held invalid or unenforceable, shall not be affected thereby and each provision of this Agreement shall be valid and be enforces to the fullest extent permitted by law.
- 15. Captions and Headings:** The captions, headings, article numbers and paragraph numbers appearing in this Agreement are inserted only as a matter of convenience and in no way shall be construed as defining or limiting the scope or intent of the provision of this Agreements nor in any way affecting this Agreement.
- 16. Buy American Act:** Pursuant to section 307 of the Omnibus Consolidated Appropriations Act of 1997, Public Law 104-208, 110 Stat. 3009, Recipient agrees to follow the requirements in 2 CFR 215, Buy American Requirements for Assistance Programs: In the case of any equipment or product that may be authorized to be purchased with financial assistance provided using funds made available in this Act, it is the sense of the Congress that entities receiving the assistance should, in expending the assistance, purchase only American-made equipment and products.

B. Special Provisions

1. Publication of results of studies

No party will unilaterally publish a joint publication without consulting the other party. This restriction does not apply to popular publication of previously published technical matter. Publications under this Cooperative Agreement may be produced independently or in collaboration with others, however, in all cases proper credit will be given to the efforts of those parties' contribution to the publication. In the event no agreement is reached

concerning the manner of publication or interpretation of results, either party may publish data after due notice and submission of the proposed manuscripts to the other. In such instances, the party publishing the data will give due credit to the cooperation but assume full responsibility for any statements on which there is a difference of opinion.

The Cooperator hereby grants the United States of America a royalty-free, non-exclusive and irrevocable license to publish, reproduce and use, and dispose of in any manner and for any purpose without limitation, and to authorize or ratify publication, reproduction or use by others, all copyrightable material first produced or composed under this Agreement by the Cooperator, its employees, or any individual or concern specifically employed or assigned to originate and prepare such material.

2. Public Information

- a) Prior Approval for Public Information Release – the Cooperator must obtain **prior** approval from the NPS Project Manager or ATR for any public information releases which refer to the Department of the Interior, the NPS, any sub-unit or employee thereof (by name or title,) or this agreement.
 - b) Publications, Signage and Exhibits
 - 1) The Cooperator shall provide a draft copy of any publications, signage or exhibits to be produced through the Project Schedule described in Attachment A to the NPS for review **prior** to final reproduction or publication. NPS will provide comments on a timely basis consistent with the overall Project Schedule defined in Attachment A.
 - 2) The Cooperator shall follow the National Park Service Standards in developing publications and signage produced through this Agreement. The Cooperator shall also credit the “National Park Service - Rivers, Trails & Conservation Assistance Program” for partial support on any publications or other materials produced as a result of this Agreement. Such credit may be placed with other similar credits. The Cooperator shall grant the NPS a perpetual, royalty free license to use any copyrightable material produced through this agreement.
3. **Davis-Bacon Act** – The Davis-Bacon Act, as amended, requires that each contract over \$2,000 to which the United States or the District of Columbia is a party for the construction, alteration or repair of public buildings or public works shall contain a clause setting forth the minimum

wages to be paid to various classes of laborers and mechanics employed in the contract. Under the provisions of the Act, contractors or their subcontractors are to pay workers employed directly upon the site of the work no less than the locally prevailing wages and fringe benefits paid on projects of a similar character. The Davis-Bacon Act directs the Secretary of Labor to determine such local prevailing wages.
(<http://www.gpo.gov/davisbacon/>)

- 4. Consistency with Public Laws** – This agreement is subject to all laws, regulations and policies governing the NPS whether now in effect or hereafter adopted.

C. Certifications – The following certification is required in accordance with the provisions of this Agreement: Certification in Regards to Lobbying, on any future award actions \$100,000 or over.

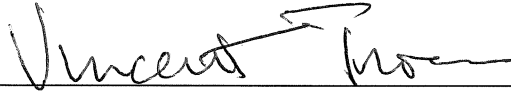
ARTICLE XIV - ATTACHMENTS

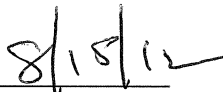
Attachment 1: FY 2012 Challenge Cost Share Application
Attachment 2: Budget

ARTICLE XV - SIGNATURES

IN WITNESS WHEREOF, the parties hereto have executed this Cooperative Agreement on the date(s) set forth below:

FOR OHIO RIVER TRAIL COUNCIL:




_____ Date

FOR THE NATIONAL PARK SERVICE

Agreements Officer
Northeast Region

Date